

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

PABLO A BERRIEL DUQUENZE,

Respondent

) Case Number: FCS-24-356942

) Hearing Date: July 16, 2026

) Hearing Time: 1:00 PM

) Department: 414

) Presiding: MUJDAH RAHIM

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Department 414 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Pablo A. Berriel Duquenze (Father) and Keilan Oliva Castellanos (Mother). They share one minor child, Shani, age 3.
- 2) On 9/24/2024, the Court entered a Judgment Regarding Parental Obligations (hereinafter "Judgment") based on Father's signed declaration of paternity and by his admission in the filed Answer. The Judgment ordered the parties to equally share uninsured medical expenses and ordered Father to pay Mother \$530 per month in child support. No custody or visitation orders have been entered in this case.
- 3) On 1/22/2026, Father filed a Request for Temporary (Emergency) Order seeking the return of the minor child to San Francisco and an award of sole legal and physical custody. The Court denied Father's request for temporary emergency orders and set the matter for hearing on the regular law

1 and motion calendar. The hearing was later taken off calendar for failure to pay the filing fee after
2 Father's fee waiver request was denied.

3 4) On 4/24/2026, Father filed a Request for Order seeking joint legal and physical custody of Shani,
4 the child's return to San Francisco, and an order permitting out-of-state travel with the child
5 unless mutually agreed in writing between the parents.

6 5) Father asserts that Mother took Shani to Miami in October 2025, initially representing the move
7 as temporary, but had since relocated with the child to Texas and then Nebraska. He alleges that
8 Mother has provided inconsistent and contradictory information regarding Shani's whereabouts,
9 frequently changed the child's residence and caregivers, and that he is currently unaware of the
10 child's location. Mother admitted to residing in Nebraska on December 30, 2205. He also alleges
11 that Mother has sent him hostile text messages and believes her actions are not in Shani's best
12 interests.

13 6) Father states that he did not previously seek custody orders because he had consistent visits with
14 Shani and believed seeking custody could jeopardize the housing and educational assistance
15 Mother and the child were receiving. Father attached to his declaration text messages in Spanish
16 with English translations, as well as photographs of himself with the child.

17 7) On 5/19/2026, Mother filed a Responsive Declaration opposing Father's requests, seeking sole
18 legal and physical custody of Shani, and proposing a parenting schedule. She alleged that Father
19 was abusive during her pregnancy, causing her to stay in shelters at times. Mother stated that
20 following their separation, Father exercised parenting time approximately twice per week while
21 she remained Shani's primary caregiver and that Father was not involved in decisions regarding
22 the child's education or healthcare. Mother further asserts that Father initially agreed to her
23 relocation to Miami or Texas and objected only after learning she had moved to Nebraska with
24 her partner. In support of her claims, Mother attached text messages in Spanish with English
25 translations that she contents demonstrate Father's prior agreement to move.

26 8) Mother states that she and Shani have greater emotional, financial, and practical support in
27 Nebraska, where they reside with her partner, Yoangeles, and his 10-year-old son. She contrasts
28 this with their prior circumstances in San Francisco, where they lived in government housing in
29 an unsafe neighborhood and she relied on CalWorks while working odd jobs. Mother asserts that

1 Shani has adjusted well to daycare, developed close relationships with her partner's nearby
2 family, and become integrated into the community. She contends that remaining in Nebraska is in
3 Shani's best interests because it provides greater stability, continuity, and safety. Mother further
4 states that she has facilitated Father's involvement by providing him access to the video stream
5 from Shani's daycare.

6 9) Regarding parenting time, Mother proposed regular and holiday visitation schedules and
7 requested that the parties continue their existing telephone and video contact schedule, consisting
8 of weekday calls from 7:00 p.m. to 7:30 p.m. and weekend morning calls. Mother also agrees
9 with Father's request that neither party relocate Shani's residence without the other parent's
10 written consent or a court order.

11 10) As to legal custody, Mother asserts that Father did not express an interest in participating in
12 Shani's medical or educational decision-making until after Mother and the child relocated. She
13 contends that awarding Father joint legal custody would be disruptive and impractical because he
14 has not historically participated in those decisions and resides in another state.

15 11) On 6/1/2026, the parties appeared for a readiness hearing and obtained mediation and hearing
16 dates.

17 12) On 6/30/2026, the parties appeared for mediation and did not reach an agreement.

18 13) On 7/6/2026, Father filed a Supplemental Declaration disputing Mother's allegation of abuse and
19 asserting that Mother has a documented pattern of emotional abuse, demeaning conduct, and
20 manipulation directed at him. Father also stated that any prior lack of involvement in medical and
21 educational decisions resulted from Mother withholding information and making unilateral
22 decisions.

23 14) Father also asserted that Mother and Shani are no longer residing with her partner at the listed
24 address. He described instances where he provided care and support to Mother and Shani and
25 stated that he has a strong support network of family, friends, and religious community members
26 in the San Francisco Bay Area who have maintained consistent contact with Shani since birth.
27 Father attached multiple photographs documenting his relationship with Shani and his extended
28 family.
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B. FINDINGS AND ORDERS

1) Appearances are required.

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